

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.1775 of 2011

Hushiar Ali and another

----- Defendant Nos.1 & 3 -applicant-
petitioners

=Versus=

Habibullah and others

----- Plaintiff-respondent-opposite-parties

Mr. Md. S.R. Khoshnabish, Advocate

----- For the petitioners.

Mr. Md. Faruque Ahmed with

Mrs. Anjuman Ara Begum, Advocates

----- For the opposite-party No.1

Heard on 12.02.2017 and

Judgment on 28.03.2017

At the instance of the present defendant Nos.1 & 3 -appellant-petitioners, Hushiar Ali and another, this Rule has been issued calling upon the opposite-parties to show cause as to why the impugned order complained of in the petition moved in Court today should not be set aside.

This Rule is directed against the judgment and order dated 10.02.2011 passed by the learned District Judge, Sunamgonj in Title Appeal No.115 of 2010 refusing to admit the appeal for hearing on the ground of the delay of 1238 days in filing the appeal against the judgment and decree dated 10.06.2007 passed by the learned Assistant

Judge, Doara Bazar, District-Sunamganj in Title Suit No.11 of 2003 decreeing the suit.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party No.1 as the plaintiff filed the Title Suit No.11 of 2003 in the Court of the learned Assistant Judge, Doara Bazar, Sunamganj for declaration of title in respect of the suit land described in the 2nd schedule of the plaint and also for recovery of khas possession of the land described in the lot of 2nd schedule of the plaint. The plaint contains that 5.96 acres of land in the Plot No.107 khatian No.80 was owned by two brothers Abdul Gani and Abdul Jalil and the record was published accordingly. The said owners sold some land to the father of the present plaintiffs, namely, Arab Ali by the registered deeds dated 06.03.1957. After death of Arab Ali the plaintiffs started to live and cultivate Aman paddy. During the present survey their Plot No.107 was splitted and recorded in the different other plots as per the sale of the original owners namely Abdul Gani and Abdul Jalil who sold total land 1.53 acres to the plaintiffs and they have been possessing and enjoying the same by way of homestead and agricultural land. The present defendant-petitioners took away the Aman paddy produced by the plaintiffs by applying force. In particular, the defendant entered into the land measuring 4 decimals owned by the present plaintiff opposite-party.

The present defendant-petitioners contested the suit by filing the written statement and denying the statements in the plaint. It is further contended that Abdul Gani and Abdul Jalil were owners upon the land measuring 2.98½ acres in equal share who agreed to sale .73½ acres to the predecessors of the defendant Nos.1-3 by receiving Tk.5.000/- (five thousand) out of total Tk.10.000/- (ten thousand). The defendants never applied force upon any land of the plaintiff because the defendants and plaintiffs have been possessing their respective land, as such, therefore, no cause of auction for filing this suit.

After hearing the parties and examining the documents produced by the parties, the learned trial Court decreed the suit by his judgment and decree dated 10.06.2007. Thereafter the plaintiffs put the decree for execution by filing the Title Execution Suit No.1 of 2010 in the Court of the learned Assistant Judge, Doara Bazar, Sunamganj. While the Execution Case has been progressing in its own course the present defendant-petitioners preferred the Title Appeal No.115 of 2010 in the Court of the learned District Judge, Sunamganj on 10.11.2010 after delay of 1238 days from the date of decree passed earlier along with an application for condonation of delay. In that application it is stated that the written statement prepared on their behalf contains wrong information as to the age of Rafique Ali son of Toimus Ali. The said

Rafique Ali used to look after of the case but he went abroad without giving papers.

After hearing the said application for condonation of delay and for admission for the appeal the District Judge, Sunamganj rejected the application for condonation of delay and also refused to admit the appeal by his judgment and order dated 10.02.2011. This revisional application has been filed challenging the said order and the Rule was issued their upon.

Mr. Md. S.R. Khoshnabish, the learned Advocate appearing for the petitioners submits that since the defendant No.2 Rafique Ali who used to look after the case i.e. who worked as tadbirkar but left for abroad before conclusion of the case without informing any of these defendant-petitioners, these defendant-petitioners had no knowledge of the delivery of judgment and decree and as such could not file the appeal in time and the learned District Judge failed to take this into consideration which has caused failure of justice in the case.

The learned Advocate also submits that the defendant-petitioners are ordinary, simple, illiterate village people having no knowledge of Court proceedings and they had no case related papers and documents with them and could not consult any lawyer and could not file any appeal in time and the learned District Judge failed to take this vital fact into consideration which has occasioned failure of justice.

This Rule has been opposed by the present opposite-party No.1.

Mr. Md. Farque Ahmed, the learned Advocate appearing with the learned Advocate Mrs. Anjuman Ara Begum for the opposite-party No.1 submits that the plaintiff-opposite-party filed the title suit for declaration of title and khas possession upon the suit land and the learned trial Court after hearing the parties and also considering the evidence adduced and produced by the parties came to a conclusion to decree the suit in favour of the present opposite-party. The defendants did not challenge the said decree within the stipulated period, instead they filed an appeal on 10.11.2010 after delay of 1238 days which is beyond limitation period, as such, the learned District Judge, Sunamganj rightly rejected the application for condonation of delay and refused to admit the appeal after such a long period of time, as such, the learned appellate Court committed no error of law and no interference is called for from this Court.

The learned Advocate further submits that the defendant No.2 namely Rafique Ali was an adults who had knowledge about all stages of the proceeding of the suit, decree and execution case by the present plaintiff-opposite-party, but failed to prefer an appeal within the stipulated period of time under the Limitation Act. Despite the fact said Rafique Ali never went abroad and he was a person of 40 years old as the D.W.1 on 29.04.2007, therefore, the ground taken for delay by the

defendant-petitioners are absolutely false and created in order to mislead the court, thus, the Rule should be discharged.

The learned Advocate also submits that the petitioners filed a fresh suit being Title Suit No.64 of 2010 on 26.10.2010 challenges the decree passed in favour of the present plaintiff-opposite-party in the Title Suit No.11 of 2003.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexures, in particular, the impugned order passed by the learned appellate Court below, it appears to me that a title suit was filed by the present opposite-party for a declaration of title and khas possession upon the suit land measuring 3.04 acres and also for khas possession in the land measuring .04 decimals. The said suit was contested by the present defendant-petitioner by filing written statement and also contending the statements made in the plaint. The said suit was decreed after hearing both the parties by the learned trial Court by his judgment and decree dated 10.06.2007 and an execution case was filed being Title Execution Case No.1 of 2010 and the execution case is still pending.

While the execution case has been pending the present defendant-petitioners preferred the Title Appeal No.115 of 2010, after a delay of 1238 days along with the application for condonation of delay. From this

revisional application it appears that the present petitioners has taken the grounds that the written statement was prepared with some information as to the age of Rafique Ali the defendant No.2. Another ground has been taken that the said Rafique Ali was the tadbirkar who went to abroad before conclusion of the case.

The above factual aspects of delay has been examined by me and the submission and the statements made in this revisional application, I consider that the defendant-petitioners had knowledge of the progress of the suit and the decree itself but the petitioners failed to take the required steps for preferring an appeal within the stipulated period of time. I have also examined the statements made in the application for condonation of delay as it appears from this revisional application at paragraph 8. After perusing the statement it appears that the present petitioners did not have any reasonable explanation, as such, an inordinate delay in filing an appeal against the judgment and decree passed is not acceptable to this Court as the petitioners falsely stated as to the age of the defendant No.2 Rafique Ali. It appears to me that the said Rafique Ali deposed in the Court as the D.W.1 on 29.04.2007 in the title suit by describing his age as 40 years old whereas the ground taken for delay in preferring and appeal as to minority age of the defendant No.2 is absolutely false.

Another ground taken by the present petitioner that the said Rafique Ali went abroad without handing over the relevant documents to

the petitioners in order to prefer an appeal within the stipulated period. I have perused the petition and could not find any evidence produced by the present petitioners as the defendant in support of such statement regarding the matter of going to abroad by the said Rafique Ali. Therefore, there is no acceptable explanation given for the delay of 1238 days by the present petitioners for preferring an appeal, as such, I consider that the delay without any explanation for such a long period of time is not acceptable under any provision of law as it causes suffering to the decree holder who did not have any involvement for cause of such a delay.

The learned appellate Court below rejected the application filed for condonation of delay by his judgment and order dated 10.02.2011 on the basis of the following findings :-

“অত্র মামলা দায়েরে ১২৩৮ দিনের বিলম্বজনিত একটি মওকুফের আবেদন বর্ণিত কারণ হিসাবে আপীল্যান্ট পক্ষ হইতে ২ নং বিবাদী রফিক আলী মামলা চলাকালীন সময়ে নাবালক থাকার দাবীটি ও মামলার পরিচালক বিদিশ যাওয়ার কারণে মামলা দায়ের ১২৩৮ দিনের বিলম্ব ঘটিয়াছে মর্মে দাবীর সমর্থনে কোন যৌক্তিক বা গ্রহণযোগ্য কোন কারণ আপীল্যান্ট পক্ষ প্রদর্শন করিতে সক্ষম হয় নাই। এমতাবস্থায়, অত্র আপীল মামলা দায়ের বিলম্বজনিত একটি খন্ডনের প্রার্থনায় দাখিলী তামাদি আইনের ৫ ধারার দরখাস্ত নামঞ্জুর করা হইল।”

After examining the above decisions passed by the learned appellate Court below by the judgment and order dated 10.02.2011

which does not suffer from any error of law. I am therefore, not inclined to interfere into the impugned judgment and order.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The interim order of stay passed upon all further proceedings in Title Execution Case No.1 of 2010 pending in the Court of Assistant Judge, Doara Bazar, Sunamganj is hereby recalled and vacated.

In view of the above, the learned executing court is hereby directed to conclude the title execution case No. 1 of 2010 expeditiously.

The office is directed to communicate this judgment and order to the concerned Court at once.